Regulation & Governance (2009) 3, 400–420 doi:10.1111/j.1748-5991.2009.01062.x

Comparing the legitimacy and effectiveness of global hard and soft law: An analytical framework

Sylvia I. Karlsson-Vinkhuyzen and Antto Vihma
Finland Futures Research Centre, Turku School of Economics, Helsinki, Finland

Abstract
The international norms that are developed as tools of global governance can be placed on a continuum from traditional "hard law" treaties to the vaguest and voluntary "soft law." In this article we develop an analytical framework for comparing norms on different positions along the continuum, thus for comparing international hard and soft law. We root the framework in both the rationalist and the constructivist paradigms of international relations by focusing on two overarching evaluative criteria: effectiveness and legitimacy. These broad concepts are divided into smaller building blocks encompassing mechanisms through which norms can exert influence; for example, by changing material incentives, identities, and building capacity, and by contributing to building source-based, procedural, and substantive legitimacy. We illustrate the applicability of the framework with three norm processes of varying degrees of "softness" in global climate governance.

Keywords: climate change, effectiveness, global governance, international law, international norms, legitimacy.

Introduction

The dominating trend in world politics, according to Rosenau (2007, p. 88), is the "disaggregation of power into myriad spheres of authority," and a central component in making these spheres of authority contribute to coordinated regulation is the spread of "norms, informal rules and regimes." Indeed, the increasing reliance on global regulation through diverse types of norms (laws, rules, institutions), a phenomenon also referred to as "legalization" (Abbott *et al.* 2000), has been seen as a necessary corollary to globalization (Chayes & Chayes 1995; Braithwaite & Drahos 2000). The types of formal norms that emanate from these myriad spheres of authority can be placed on a continuum from traditional "hard law" – precise and legally binding treaties with delegated enforcement bodies – to the softest of "soft law," with its vague, aspirational goals. Legalization is thus taking place through a diversity of norms and in this diversity lies the core of this article. The harder end of the continuum has primarily been studied by scholars of international law, but more and more also by scholars of international relations.[1] The softer end of the continuum has received increased attention in studies of private authority, transnational

Correspondence: Sylvia I. Karlsson-Vinkhuyzen, Finland Futures Research Centre, Turku School of Economics, Pinninkatu 47, 33100 Tampere, Finland. Email: sylvia.karlsson@tse.fi
Accepted for publication 9 September 2009.

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standard setting with non-state actors, and other soft modes of governance (Braithwaite & Drahos 2000; Shelton 2000a; Bernstein & Cashore 2007; Black 2008).

Clearly, norms along the whole legalization continuum are *potentially* influential, but what are the differences, linkages, or even tradeoffs between norms on different positions along the continuum, between harder and softer law? Some attempts have been made to look at (almost) the whole continuum of formal norms in the past decade (see, for example, Abbott & Snidal 2000; Brütsch & Lehmkuhl 2007). Yet most attempts to compare hard and soft laws have several weaknesses. First, the criteria used for comparison vary considerably and are seldom derived from a holistic theoretical framework of, for example, why actors (state and other) abide by the law, or an explicit normative framework on what gives norms their legitimacy. The evaluative criterion used is commonly centered on effectiveness (as compliance), and legitimacy enters only as one of several instrumental factors toward strengthening compliance. Second, comparisons are made as if there were only two categories of norms, hard and soft law, with insufficient attention to the significant diversity within each category. Third, the hypotheses and assumptions about how norms differ according to selected criteria are formulated without much basis in comparative empirical work. Fourth, the analyses are often made as if the norms exist in a world of homogeneous states in the Western, wealthy, and democratic form. We return to these weaknesses in the final section.

In this article we develop an analytical framework for comparing different types of international norms to enable more systematic empirical comparative studies along the whole legalization continuum. We deliberately root our framework in both the rationalist and the constructivist paradigms of international relations by centering it on two overarching evaluative criteria: effectiveness and legitimacy.

After we provide a brief orientation in hard and soft law definitions, we present the framework for comparing the effectiveness and legitimacy of norms based on theoretical and normative arguments. For illustrative purposes we apply the framework, albeit sketchily, on three norm development processes concerning climate change mitigation. The concluding section summarizes the analytical framework and discusses its application in a diverse world.

A short orientation in the hard–soft law landscape

When navigating the international legalization landscape, both empirical documents and academic literature, it is easy to get lost. The signposts, the way that key terms are defined, have little coherence, and overlapping definitions of multiple terms abound. At the center of this Babelian confusion are terms such as "norms," "rules," "institutions," and "law" in their various forms. This article focuses on the terms hard and soft law, which cover a certain range of formal norms but exclude a number of informal (mostly unwritten) norms that are not explicitly designed in a system of governance.

For the term "hard law" there are reasonably well accepted legal definitions, including its sources (treaty and custom), and the implication of the general obligation on states (pacta sunt servanda) to follow them. In theory at least, a norm is either international law or it is not. If a "'soft' norm meets the requirements of the doctrine of sources of international law, it is 'hard law'" (Charney 2000, p. 115).[2] A closer look, however, yields a more mosaic picture. For example, treaties may be so generally worded that they are devoid of legal content and can be referred to by the term "legal soft law" (Chinkin 2000).

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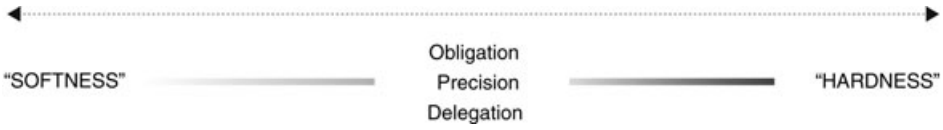

Figure 1 The figure illustrates the continuum of international legalization covering formal norms from hard law to soft law, based on the criteria of Abbott and Snidal (2000): precision, obligation, and delegation. The continuum contains a diversity of norms that is filling the space of global governance.

Elaborating on the content requirements of what types of international law can be considered hard, Abbott and Snidal (2000) give three criteria, which we adopt in this article: providing binding *obligation*, being *precisely* worded, and providing for some type of *delegation* in the implementation of the law. If legal arrangements are weakened along one or more of these dimensions, they enter the realm of soft law.

Orientation in the soft law landscape is more confusing (Charney 2000). Soft law is usually defined more after what it is not: soft laws are not legally binding by themselves (Shelton 2000b), they are not in treaty form, and they do not belong to the category of customary law. Many realists and legal scholars consequently reject the very idea of referring to these types of norms as law. Chinkin (2000, p. 27) uses a number of concepts that define a hierarchy in descending "hardness" of norms, including "legal soft law" (imprecise hard law); secondary or delegated soft law (which includes the "statements and practice that develop around a treaty to supplement or correct the text"); and "non-legal soft law" (resolutions, declarations, the output of intergovernmental conferences, etc.). Chinkin does not name the last category of soft law, but it encompasses the kind of norms that are developed without the involvement of states. Some scholars would not include these in the term soft law while others, such as Kirton and Trebilcock (2004), consider such private law as a central part of international soft law.

This exploration of the hard and soft law landscape results in a long continuum, "from hard law through varied forms of soft law, each with its individual mix of characteristics" (Abbott *et al.* 2000, p. 41). Therefore, any systematic evaluation of norms needs to pay careful attention to the distinction of the subcategories and diversity along the continuum. The framework we develop in this article aims to enable comparison of various forms of law along the soft–hard continuum, and we adopt the criteria of precision, obligation, and delegation as the key elements that determine a norm's position along that continuum. However, for analytical clarity we confine our discussion to norms where states are the major actors.

Evaluating international norms

Characterizing the diversity in international norms along the hard–soft continuum (Fig. 1) becomes valuable only if we understand what the differences mean against evaluative criteria that matter empirically, theoretically, and normatively. The division of theories of international relations into distinct paradigms of rational choice and constructivism raises the question whether we have to select criteria derived from one of these or whether we can combine criteria from different paradigms: we argue for the latter. The rational choice paradigm draws on economics and public choice theory, and

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treats actors as basing their decisions on utilitarian calculations. The constructivist tradition derives from anthropology and sociology, and emphasizes the roles of culture, norms, and habits as important sources of behavior. However, several scholars have chosen a middle path, arguing that there is evidence that decisionmaking in relation to creating and complying with international norms is influenced by drivers from both paradigms (see, for example, Young 2002), as the interest-based and normative strategies are deeply intertwined (Abbott & Snidal 2000). Therefore, while there might be irreconcilable differences between the two approaches at the level of grand theory, both approaches can be improved on the ground "by carefully incorporating the arguments made by the other" (Abbott & Snidal 2000, p. 422).

We conclude that each paradigm has explanatory power for specific situations of international norm development and each is relevant for identifying evaluative criteria. Rationalists have studied the ability of norms to be effective in changing behavior and addressing common problems, dependent on the carrots and sticks they provide for compliance, as this influences the utility calculations of actors. The legalization approach of Abbott *et al.* (2000) sparked critical comments from constructivist scholars (Brunnée & Toope 2000, 2001; Finnemore & Toope 2001). The critique was aimed at the "narrow conception" of law, rooted in "positivism," "formalism," and "western" tradition (Finnemore & Toope 2001, pp. 742–745). According to this critique, such a focus on legalization leads to diminished attention paid to important topics such as legitimacy, from which law gets its "force" in non-hierarchical systems, and customary law, as well as the process of law.[3] The constructivist paradigm has focused on the legitimacy of international norms, which is intimately connected to the construction of the identity of states and is the glue that builds the international community.

When we combine the rationalist and constructivist paradigms, effectiveness and legitimacy emerge as core evaluative criteria of international norms. The framework developed in this article uses the degree of legalization as an independent variable, and concepts of legitimacy and effectiveness as dependent variables. We thus use the form of the "end product" to *categorize* between different types of international law, but concentrate the analysis on broader phenomena; namely, the creation of legitimacy and mechanisms of effectiveness. Our framework combines mechanisms from both rationalist and constructivist mechanisms for analyzing effectiveness (Table 1). Legitimacy as an independent concept does not render to this kind of division of 'grand theories' on human behavior, but normative theory provides the starting point for identifying relevant sources of legitimacy.

Table 1 Mechanisms of effectiveness for international norms, clustered in three categories

Influencing the motivation to comply	**Mechanism**
Changing material incentives	Hard sanctions
(rationalism, logic of consequences)	Soft sanctions
	Systems of reward
Changing identities or preferences	Webs of dialogue
(constructivism, logic of appropriateness)	Legitimacy pull
Influencing the ability to comply	**Mechanism**
Capacity of intervention	Technical and human capacity building
	Political capacity building

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We argue that there is considerable value in incorporating both criteria – effectiveness and legitimacy – as well as the contextual relationship between them in the analysis of international norms. According to Wendt (2001), instrumental effectiveness cannot override questions of legitimacy, as is the case in many consequentialist rational choice analyses. On the other hand, Eckersley (2007) claims that the social constructivists' focus on norms and identities has sometimes obscured other bases of legitimacy, such as effectiveness. By a holistic approach we can contribute to bridging the "curious division of intellectual labor in the study of international regimes that has created an analytical separation between questions of legitimacy and effectiveness" (Eckersley 2007, pp. 308–309).

Building an analytical framework

The analytical framework for comparing international norms along the soft–hard continuum is centered on two criteria: effectiveness and legitimacy. In the following sections we elaborate on how these concepts can be defined and linked to theory, we describe the key elements of the framework, and we illustrate how the framework can be used to compare norms in specific areas of governance. The key elements constitute a set of mechanisms through which international norms exert influence (are effective) – hard and soft sanctions, systems of reward, webs of dialogue, legitimacy pull, and various forms of capacity building – and a number of components through which they build legitimacy – expertise, tradition, discourse, governmental and non-governmental participation, accountability, transparency, effectiveness, and equity. There is a rich body of literature to draw upon to identify factors that can contribute to effectiveness and legitimacy of international norms, which gives us a relatively long list of variables to consider, but we argue that this is theoretically, methodologically, and empirically valid. First, both criteria are complex concepts that cannot be reduced to a single variable. Second, the subset of variables that is most important for effectiveness and legitimacy might be different for specific norm development processes, and should not be predetermined. Our comprehensive framework should thus be applicable over a large range of cases, which is necessary for identifying any consistent variations in effectiveness and legitimacy along the soft–hard law continuum and for identifying under which conditions such variations take place.

Climate governance as a probe

To make the description of our analytical framework more concrete and to illustrate how it could function, we use the example of developing international norms on climate change mitigation. The case provides a set of norms along the whole continuum from soft to hard law generated from an array of international processes. Here we analyze norms stemming from three of these processes.

The first set of norms comprises those that are contained in the United Nations (UN) Framework Convention on Climate Change (UNFCCC) and its Kyoto Protocol (KP). Both of these treaties are legally binding, the KP being significantly harder due to its more precise obligations for developed countries and greater degree of delegation. The core of the KP's hardness is the obligatory and internationally negotiated commitments in the form of quantified emissions limitations and reduction objectives by specific timetables. States' achievements of these are subject to a compliance mechanism. The UNFCCC is a framework convention but it has features with some degree of precision, such as the reporting system (Article 12) and the carefully constructed overall objective (Article 2).

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The second set of norms is that generated by the Commission on Sustainable Development (CSD) deliberations on energy for sustainable development in 2001 and 2006/2007, which have direct relevance for climate change mitigation. The CSD is a functional high-level commission of the UN Economic and Social Council with a mandate to inter alia elaborate policy guidance and options for future activities needed to achieve sustainable development. The CSD decisions belong to non-legal soft law and are neither legally binding nor ratified by countries. Its recommendations are very general and while there is an element of reporting and review in the CSD process, there is no delegated review process.

The third set of norms is that formulated by the Group of Eight (G8) in a declaration and plan of action coming out of its summit in Gleneagles in 2005 (the Gleneagles Plan) to address energy and climate change. The output of this "minilateral" process is clearly softer than the previous two examples: the G8 is a non-organization, without a permanent secretariat, a website, or an institutional set-up for review. Nonetheless, the Gleneagles Plan contains some rather specific recommendations for what countries should do, as well as recommendations for specific organizations such as the International Energy Agency and the World Bank.

Together, these three sets of norms, each with its own place on the continuum, enable us to explore all of the factors influencing their effectiveness and legitimacy, as the sections below will show.

Effectiveness and its mechanisms

When norms are intentionally designed as part of governance toward some specified goal, the real measure of their effectiveness is naturally the degree to which they achieve that goal. Another way to look at effectiveness is to see how effective the norm is in changing the behavior of states and other actors. These two dimensions are often referred to as problem-solving effectiveness (impact) and behavioral effectiveness (outcome). However, there are considerable challenges in evaluating effectiveness of international norms on an absolute scale. Behavioral effectiveness, in our view, offers a fruitful approach to address the challenges of evaluating effectiveness, if one focuses on the dynamic question of how, or through which mechanisms, different types of norms influence behavior (Chayes & Chayes 1995).

Compliance with international norms depends on (i) motivation and (ii) capacity to comply. There are several mechanisms through which motivation and capacity can be strengthened (Table 1).[4] The choice of theoretical paradigm naturally influences which of these categories of mechanism are assigned (more) importance (Hirsch 2004). We first discuss mechanisms that function within a rationalist logic of consequences and then turn to those mechanisms that work more within a logic of appropriateness and thus a constructivist paradigm. The last category encompasses mechanisms that influence the ability of actors to comply, and works within both paradigms.

Mechanisms via motivation

Motivation to comply with international norms can be enhanced by changing the material interests of the actor, or even its preferences or identity (Abbott & Snidal 2000). In the first case there is a variety of sanctions that can be linked to non-compliance. Coercion through the threat of material *hard sanctions* is a dominant mechanism of enticing obedience to law in a national context, and it also exists at the international level.

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However such material sanctions (legal, economic, military, membership) are tied to a limited subset of international norms, commonly emanating from the UN Security Council or the World Trade Organization (WTO), as "most international law does not rely upon Austinian sanctions" (Chinkin 2000, p. 40).

The consequences of non-compliance can instead come in the form of *soft sanctions*, which are usually linked to a concern for negative impacts on the reputation of the actor. Impacts on reputation through moral and diplomatic pressure are an important enforcement mechanism for all international law (Chinkin 1989). Disapproval with a non-compliant actor can be shown through "exposure, shaming, and diffuse impacts on the reputation and international relationships" (Chayes & Chayes 1995, p. 110).

The use of both hard and soft sanction mechanisms requires that compliance is at least partly observable. A norm or regime can have a set of monitoring, reporting, and verification measures associated with it to detect non-compliance, or non-governmental organizations (NGOs) may contribute to fulfilling this function. A high degree of transparency in the implementation of the norm, even in the absence of hard sanctions, can thus act as a deterrent to non-compliance (Chayes & Chayes 1995).

Rather than enticing compliance out of fear of negative consequences, a *system of rewards* is a carrot-oriented mechanism. The reward could be tied to inherent benefits from complying with the norm or funds allocated to furthering implementation, and actors comply because it increases their welfare (Brown Weiss 2000). Rewards are primarily associated with financial flows and technology transfers to poorer countries, and such flows are often packaged as, or associated with, capacity building (see below). But this does not mean that they cannot be perceived as rewards.

When the motivation to comply with international norms comes from changing preferences or even identities of actors, it can come about through processes such as deliberation, norm diffusion, and social learning. This mechanism is only plausible if we ascribe to states and other actors the potential to learn and internalize norms, something which constructivists (Hirsch 2004) and some bounded rationality modelers do (Peters 1999). States can be drawn into a process of learning with an active support of norm entrepreneurs who promote norms from various organizational platforms (Finnemore & Sikkink 1998). Norms often emerge first in a domestic setting from where they are spread internationally (Finnemore & Sikkink 1998), but they can also surface from international arenas, such as in international organizations (IOs) (Park 2006). Braithwaite and Drahos (2000) noted that *webs of dialogue* were more commonly used and often more effective than "webs of coercion" in many areas of global regulation. There is a diversity of ways through which dialogue influences behavior, including defining issues as a concern, inducing cooperation, constituting normative commitments, and nurturing habits of compliance that can be institutionalized into bureaucratic routines (Braithwaite & Drahos 2000, p. 38).

Another mechanism for strengthening compliance with international norms is the *pull of legitimacy*, where states and other actors comply to the degree they consider the norm to be legitimate (Bodansky 1999; Brown Weiss 2000; Coglianese 2000). Franck (1990) considers the legitimacy of international rules as the dominating source of obligation, and thus compliance. A rule that is packaged as "law" is often supposed to exert a strengthened pull toward compliance (Charney 2000).

Among the three norm processes for climate change mitigation we introduced above, there is considerable diversity but also common features in the motivation oriented

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mechanisms. Hard sanctions appear in the KP's compliance mechanism, which is a rare feature in an environmental treaty. These sanctions include limitations on the use of flexibility mechanisms and stronger commitments in future years. Hard sanctions lie far beyond the mandate of the CSD and the G8, even if the G8 exerts a type of group hegemony in the liberal economic order, making countries comply with the rules of this order "or risk being barred from trade and monetary regimes" (Bailin 2005, p. 3).

Soft sanctions are more subtle and harder to detect but play a role, particularly in the UNFCCC/KP and G8. The yearly UNFCCC Conferences of the Parties are worldwide media shows with 10,000 or more participants – countries' reputations are clearly at stake. Reporting and monitoring of compliance play dominant roles in the UNFCCC/KP provisions, although developing countries have much less stringent reporting requirements. All countries are invited to submit reports of how they have implemented earlier recommendations of the CSD, but few do and their reports are not reviewed. The G8 decisions fare even worse as there is no tradition of member countries reporting on how earlier commitments have been implemented. However, reputational concerns seem to be at work in relation to G8 output, at least for the host country, which feels the pressure to develop ambitious agendas and output. For example, Japan has been a relatively reluctant actor in global climate governance but hosting the G8 in 2008 "forced" it to take a higher stand.

The systems of reward associated with the UNFCCC/KP process could be the funds they have created, such as the Least Developed Country Fund and the Adaptation Fund, even if they are on a small scale so far. The G8 induced the World Bank to set up the new Climate Investment Funds. The CSD process is not associated with any indications of reward, unless some bilateral or multilateral donors would be inclined to channel resources to activities linked to its recommendations.

With regard to changing motivations through webs of dialogue, the CSD was reformed in 2002 precisely to provide an avenue for learning, with a particular push by the US Bush administration, which did not want it to generate norms. CSD negotiations commence with a session dedicated to sharing experiences in implementation, and the meeting provides courses for delegates and observers in its learning center. Before the G8 Gleneagles Summit, some 20 countries were invited to an informal setting to enable an atmosphere for learning, with reluctant actors such as the US, Russia, and India at the table. Nonetheless, we argue that despite its formalized procedures, the UNFCCC/KP has served as the strongest arena for dialogue and learning because of the frequent and intense interaction over some 20 years. Webs of dialogue is thus a distinct or even core idea in each of the three processes, but how effective it is in increasing compliance is challenging to evaluate.

It is easier to conclude that the only process generating norms that have a pull of legitimacy for the majority of countries is the UNFCCC/KP, which embodies the legitimacy of law based on universal participation. Some countries do pay attention to CSD decisions because they emanate from a UN body, and the G8 member states may feel obligated to carry out their joint action plans for allegiance to and identity with this exclusive club, but there are few signs that this happens on any significant scale.

Mechanisms via capacity

If dialogue is a mechanism through which states learn about new problems and build enough concern to be part of developing international norms, and then wish to comply

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with them, it is also a mechanism through which states can build the capacity to comply when this does not exist (Haas 2000). To comply with a norm a state needs to have knowledge about measures and strategies for implementation as well as the capacity to adopt them. In cases where, for example, a treaty needs to influence the behavior of non-state actors, implementation may require a state to establish "detailed administrative regulations and vigorous enforcement efforts," which in turn requires "scientific and technical judgment, bureaucratic capacity, and fiscal resources" (Chayes & Chayes 1995, p. 14). This can be beyond the capacity of many states. International treaties often have specific *technical and human capacity building* measures associated with them – or these are created ex post in various IOs and bilateral programs designed for the purpose. These then support compliance and are targeted at countries with limited human and economic resources. It is a more open question if, and to what degree, such capacity building – which can alternatively be viewed as a system of reward in a rationalist sense – actually influences compliance in those countries that receive it. However, as Chayes and Chayes (1995, p. 3) stress in their theory of compliance with treaties, there is a widespread assumption of a "general propensity of states to comply with international obligations."

In some cases a government lacks political capacity to comply with international norms; the ability to intervene successfully in the domestic political sphere. In the Habermasian view, the legitimation process of international law is a political struggle. While the government makes the decision on behalf of domestic constituents, the latter may have certain leverage over the government. International norms may, however, influence a state's behavior by altering the strategic environment that a government faces domestically (Dai 2007), through a process we can call *political capacity building*. For example, a government can refer to international law to legitimize measures that are unpopular in a domestic context. Dai (2007) shows that compliance with international norms reflects the political leverage and informational status of competing domestic constituents. International organizations and norms affect domestic political processes by building political capacity and increasing both the political leverage and the status of pro-compliance constituents.

Among our sets of norms on climate change mitigation, the UNFCCC/KP engages most with technical and human capacity building as a mechanism for strengthening compliance on a number of levels. It has long been on the agenda related to technology transfer, national communications, and the flexible mechanisms. In the Convention, capacity building is charged to one its subsidiary bodies (Article 9(2)d), and the KP commits Parties to cooperating in and promoting capacity building (Article 10(e)). The CSD output always raises the need for capacity building and the Gleneagles Plan pledges support for capacity building in relation to, for example, renewable energy and energy efficiency. But neither the CSD nor the G8 has institutionalized any follow-up to these general commitments. When it comes to political capacity building, the UNFCCC and KP decisions are the norms by far most used by NGOs within countries in the North and South to push their governments to action.

Legitimacy and its components

Legitimacy is about the justification of authority (Bodansky 1999). From the premodernist era to our time, questions of legitimacy have been particularly connected to the relationship between (in principle) equal people, often "citizens," and those to whom these individuals have (in principle) voluntarily given a part of their sovereignty

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(Kyllönen 2006). Due to the underlying egalitarian principle, the authority to limit, regulate, and guide the actions of "equal citizens" has to be reasoned for and justified. This justificatory relation has traditionally been most relevant between the citizens and their nation state, but is now an increasingly important question between the individual and global governance.[5] It is, however, under lively debate to what extent the justificatory motivations between citizens and the national political authority can be used in analyzing global governance and international law (Scharpf 2001; Howse & Nicolaidis 2003; Clark 2005).

Legitimacy can be analyzed from two distinct but related dimensions: normative and subjective. The normative dimension encompasses the validity of political decisions and political orders and their claim to legitimacy (Zürn 2004): the fundamental justification for intervention, the principles that limit the exercise of power, and the source of authority for the intervention (Beetham 1991; Kyllönen 2006). The subjective dimension of legitimacy, in contrast, covers the societal acceptance of political decisions and political orders (Zürn 2004). In the context of global norm development, the question "legitimacy for whom?" cannot be asked by only representatives of a state that considers whether to support the norm. Global norms concern the citizens of most or all countries and the question thus has to reach beyond states as the only members of the international community.

The normative and subjective dimensions are of course partly interdependent. Clark (2005, p. 254) describes the indeterminate aspect of legitimacy in international society over time, how in the practice of legitimacy norms "encounter a complex universe of politics, consensus and power" in each period of history. The factors that are identified as sources for normative legitimacy are linked to shifting subjective standards as well as to shifting theoretical and normative paradigms. Closing the circle of interdependence, dominating normative theories of legitimacy could influence what components are considered relevant for subjective legitimacy. The components that build legitimacy can vary – not only over time but also between communities – highlighting that the criteria for legitimacy depend upon historical understanding and shared norms in each particular community (Bernstein & Cashore 2007). Demands of legitimacy from one community can be in direct conflict with those of another community (Black 2008). We argue, therefore, that even if we were mostly interested in subjective legitimacy, identifying relevant components of legitimacy from normative theory serves as a useful starting point for an empiric investigation. These components of normative legitimacy are at least qualitatively comparable and to some extent measurable – one example being the level of transparency of a regime. The transparency of the development and implementation of a norm can be compared by looking at the number and type of public documents related to the process, their accessibility (cost, language translations), the timing of making them available, and so forth. Interviews and analyses of legitimation discourses can be used to confirm which components of legitimacy are important in subjective terms in specific cases.

Our framework builds on Bodansky (1999), who groups the components that give legitimacy into source-based (the source of authority is considered legitimate, such as tradition, God, or experts), procedural (authority emerges from fair procedures), and substantive (leads to successful outcomes). In the context of international norms, the source-based, procedural, and substantive sources of legitimacy often work together, as do the second-order components, which function as interdependent building blocks for the norm's claim to legitimacy (Table 2).

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Table 2 Components and sub-components of the legitimacy of norms

Components of legitimacy	Sub-components
Source-based (input legitimacy)	Expertise
	Tradition
	Discourse
Procedural (input legitimacy)	Governmental participation
	Non-governmental participation
	Accountability
	Transparency
Substantial (output legitimacy)	Effectiveness
	Equity

Source-based legitimacy

Source-based legitimacy is perhaps the most elusive component of legitimacy for international norms. Most of its sub-components are difficult to define and challenging to evaluate or measure. The type and amount of information, knowledge, or *expertise* that feed into the process of international norm development can be an important source of the resulting norms' legitimacy. Some norm development processes privilege certain types of knowledge (e.g. scientific or local) and build their legitimacy on this.

In cases in which path dependency leads to preferences for modifying existing norms rather than creating new ones, *tradition* serves as a sub-component of legitimacy. Norms and IOs build up legitimacy over time; the resistance to abandoning well institutionalized processes grows with their age. If tradition is an important factor in developing international norms, then the early stages of framing, agenda setting, and negotiation become particularly critical. Once a negotiation process has started it becomes increasingly difficult to make changes to the core elements of the norms being developed.

The legitimacy of a norm can also emerge from the *discourse* or ideology in which the negotiation is framed. Norms have different appeal to different "isms," which increases or decreases their legitimacy among different actors. This can relate to the general preference – often rooted in political ideology – for multilateralism or unilateralism, for liberalism or a state-centered approach, or for governance through hard law or more voluntary norms and measures.

The three sets of norms of our probe show both similarities and distinct differences in relation to these three sub-components of source-based legitimacy. First, expertise is an important source of legitimacy for the UNFCCC/KP processes, which must rely only on peer-reviewed scientific knowledge. The CSD has sought to build its legitimacy by drawing more on direct input from "practitioners" rather than by commissioning scientific reports. The G8 itself has seldom tried to build legitimacy based on expertise. However, the Stern report (Stern 2007), which summarized the economic knowledge relevant to climate change, was commissioned by Prime Minister Blair shortly after the Gleneagles Summit, and the first results were presented to the Gleneagles Dialogue, a series of meetings held as a follow-up to the summit.

Second, the UNFCCC has, over its almost 20 year history, come to be seen by the majority as *the* legitimate form of intergovernmental governance addressing climate change; this position is strongly linked to tradition and its UN home. The CSD was also

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a product of the 1992 Earth Summit, and its discussions on climate change through, for example, the Agenda 21 chapter on the Atmosphere, has almost as long a history as the UNFCCC. However, the CSD has over this time failed to build up sufficient legitimacy in the international community and thus the decisions it makes in most cases face a similar fate (i.e. they lack sufficient legitimacy). Its most recent deliberations on energy and climate change in 2006/2007 confronted the additional challenge of being considered irrelevant by many countries because of the ongoing UNFCCC negotiations. Furthermore, discussions and particularly norm development on energy policies have a limited tradition within the UN.

Finally, the norms developed within the UN framework – particularly UNFCCC/KP but also CSD decisions – have, because developing countries are in the majority, created a discourse that is centered on equity with a postcolonial dependency tone. Many industrialized countries find this discourse irrelevant or passé. Developing countries secured the inclusion in the UNFCCC of the principle on common but differentiated responsibility (Articles 3.1, 4.1), giving developed countries the obligation to take the lead in mitigation, and strong references to the priorities of social and economic development in developing countries (Article 4.7). This has given them several cards to play in the further development of these norms.[6] The CSD has elements of the same discourse, but developing countries have concerns with its deliberations and output being too focused on the environmental pillar of sustainable development. In contrast, the output of the G8 is grounded in a discourse revolving around a more neoliberal agenda of globalization, free trade, and thus efficiency of the global economic system. For those who agree with either of these discourses it contributes to the legitimacy of the norms it generates and vice versa.

Procedural legitimacy

Bodansky (1999) and many others refer to the *procedural* source of legitimacy as an integral part of legitimacy. The definition of a legitimate process of norm development in a domestic context is predominantly linked to some notion of democracy. Democracy's domain is national and it has often therefore been considered irrelevant to international law (Crawford & Marks 1998). Yet there is a lively debate on democracy in global governance – current democracy deficits at this level and how they could be reduced (see, for example, Archibugi *et al.* 1998; Patomäki 2003; Held 2004). When the notion of democracy *is* linked to international legalization, a number of open questions arise regarding its meaning and what type of democracy is possible or desirable (Bodansky 1999; Moravcsik 2004). In theory – but not in practice – all countries have a veto in global norm development such as treaty negotiations, because they predominantly require consensus. Democratic legitimacy could then be indirectly derived from the domestic level. The first problem with this claim is that many of the participating countries are not democracies. A second problem is that foreign policy, including negotiations of international law, is less subject to democratic debate and accountability checks than domestic policy even in democracies (see below). One possibility for overcoming these problems is to approach international legalization as a deliberative democratic process that in part relates to the degree of participation and the "quality" of deliberation.

Recognizing the complexity of discussing and analyzing the democratic process in a global context, we include four factors in our framework (Table 2). The first factor is the fair *participation of governments* and decisionmaking procedures that they accept as just.

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As we confine our elaboration of the framework to norms developed by governments, the question is how many governments are allowed at the table and on how equal terms. Fair participation is most important for states who feel that they belong to the periphery of the international community, which can make states "feel aversion towards norms shaped by the 'ingroup' " (Hirsch 2004, p. 183). The participation rules are often derived from the host organization. In the case of norm development processes linked to the UN system – excluding the Bretton Woods institutions – the consensus-based decisionmaking and the use of the "one state one vote" provides for a certain degree of fairness.

Increasing the *participation of non-governmental actors* in the actual process of global governance has been considered a key aspect of strengthening its legitimacy (Reinicke & Witte 2000; Scholte 2002). This happens by strengthening the dialogic and communicative processes that "gives equal weight to the views and voices of all those in the global political community" (Elliott forthcoming). Nanz and Steffek (2004, p. 315) see NGOs as having "the potential to act as a discursive interface between international organizations and a global citizenry" and thereby contributing to creating the kind of public sphere that they consider necessary for bestowing democratic legitimacy on global governance.[7] However, such legitimation requires more than a seat at the table; it also depends on how well different parties are represented and what they can bring as leverage to the negotiations (Held 2004). Moreover, non-governmental participation in the intergovernmental processes is by no means uncontroversial for many states, particularly those which do not provide space for civil society as political actors in their domestic sphere.

Another sub-component of input legitimacy is *accountability*. Accountability means that actors can be held to account for the content of the norms they agree on and for the way they implement them. The major actors in the intergovernmentally based norm development processes are states – even if IOs take on supportive roles for the implementation, particularly in developing countries. This factor, together with weak global governance structures and a very limited direct link to the global "public," means that accountability centers around states and their domestic contexts. The accountability of (democratic) states to their constituents on international issues is often not comparable to domestic issues. There is at best only sparse consultation between the government and the public or parliaments about policies on global issues; parliaments have "generally exercised only lax oversight of their state's involvement in multilateral conferences, transgovernmental networks, and suprastate agencies" (Scholte 2002, pp. 290–291). There is a further constraint for holding governments to account by parliaments and electorates, particularly when states negotiate international norms through coalitions such as the European Union (EU) or the Group of 77 and China. Finally, an important question is whether governments should be accountable for adopting specific norms only toward their own citizens or also to the "citizens of the world" who are often likely to suffer from the consequences of the decisions (Patomäki 2003; Zürn 2004).

Transparency in the processes of developing and implementing international norms is a prerequisite for strengthening the participation of non-governmental actors and accountability, and thereby procedural legitimacy (Blagescu *et al.* 2005). Transparency refers to the disclosure of relevant information regarding the processes, including the scientific background, draft and final decisions, position of various actors, and status of implementation. It is thus a much broader concept of transparency which builds legitimacy than mere information on compliance (Mitchell 1998, p. 110). Transparency in this broader sense enables civil society actors to prepare their participation in the process.

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In our empirical case, the building of legitimacy through government participation is strongest in the UNFCCC/KP treaties and their related rules. They are developed in a process that is open to all governments, including those standing outside the agreements who can be observers. In the CSD, 53 governments are members at one time, but most countries still attend and take part in the negotiations of the decisions. The exclusivity of the G8 as an arena for norm development stands in stark contrast. The role of non-governmental participation for building legitimacy is strongest for the UN-generated norms, as the UN's openness to observers from civil society has a long tradition. The G8–NGO relationship has, in contrast, been virtually non-existent (Hajnal 2007). The accountability concerns that can reduce the legitimacy of these three sets of norms emerge along several dimensions. For all three sets there is a challenge to hold states to account for failure to comply with adopted norms but, as discussed above, the CSD and G8 fare worse than the UNFCCC/KP. Furthermore, hard law in the form of international treaties passes parliaments at least once and is incorporated into national legal processes, while there is much less interaction with parliaments for the soft law of the CSD and G8. The G8 is a blunt manifestation of the executive multilateralism that foreign policy is often characterized by (Zürn 2004). With regard to the last sub-component of legitimacy in our framework, transparency, this is by far most institutionalized within the UN context. In contrast, the G8 makes only final documents available but virtually no agendas, background, or draft documents.

Substantive legitimacy

The last but not least important source of legitimacy is substantive: the actual impact of the norms. This matters in both normative and subjective dimensions of legitimacy. When norms are used as tools of governance, substantive legitimacy encompasses their content including their contribution to solving the problem and to improving justice in society. Recently, some theorists have emphasized the substantive or output dimension of legitimacy in global governance because of the lack of democratic means and accountability between those who govern and those who are governed (Scharpf 1999; Eckersley 2007).[8] In an EU context, Scharpf (1999) contends that input-oriented arguments could never carry the full burden of legitimizing the exercise of governing power, but they are always complemented by output-oriented arguments. Indeed, he argues that output legitimacy could compensate for lack of input legitimacy if a political actor or institution succeeds in providing public goods. The subjective dimension of a norm's output legitimacy depends on social judgments about acceptable performance, which may not coincide with the normative dimension (Eckersley 2007).

In a situation of extreme global inequity it is not enough that the norm is effective in changing behavior, it also matters what the outcome means for *equity*. Franck (1990) stresses that international rules exert their most powerful pull toward voluntary compliance when they are perceived to be both legitimate *and* just. If norms do not explicitly address existing inequities then their impact will either preserve the status quo or, more likely, contribute to increasing inequity. Hirsch (2004, p. 191) contends that developing countries may develop "social detachment and even hostile feelings toward the system that does not rectify their inferior position," and that decisionmakers in these countries may therefore view norms emerging from this global system as less legitimate. The greatest challenge is to judge the extent to which norms provide justice over time for future generations.

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The close links between substantive legitimacy, discourse, and participation are well illustrated by our probe. When all countries are at the table in the UN processes principles such as equity and common but differentiated responsibility become central to the negotiated norms around climate change. These principles were largely absent in the Gleneagles Plan. Yet the failure to actually implement these principles can backfire in legitimacy terms – such signs can already be detected in the case of the UNFCCC/KP. The absence of the US in the KP greatly reduced its legitimacy for the simple reason that its effectiveness was severely thwarted without the world's greatest polluter of greenhouse gas emissions. The G8 faces the accusation of being too effective in imposing an agenda of globalization and market economy, but in the case of climate change it has been accused of being far too ineffective in eliciting change in state behavior.

Comparing hard and soft law in diverse contexts: A way forward

The elaboration of the mechanisms of effectiveness of international norms and the components that earn them normative legitimacy confirm how mutually interdependent effectiveness and legitimacy are. Legitimacy is crucial in achieving state compliance, but according to Matz (2005), legitimacy requirements such as state consent, transparency, and public participation may also hinder effective implementation – and the environmental integrity – of global governance. Furthermore, effectiveness is a component of legitimacy; lack of acceptable performance undermines the legitimacy of the norm in the long term (Eckersley 2007). An example of a positive impact of legitimizing international norms through effectiveness has been given by Zürn (2004), who suggests that the post World War II period of growth in Western countries was partly enabled by executive multilateralism whereby governmental representatives coordinate policies internationally with very little national parliamentary control and public scrutiny. This, however, was highly effective, and enjoyed considerable legitimacy as well.

This dynamic between norms' effectiveness and legitimacy also operates over time, between harder and softer law, and vertically between levels of governance. An initially very soft norm of limited legitimacy may, through its effectiveness, earn high enough legitimacy to be developed into hard law. Conversely, an initially hard law with high legitimacy can due to low compliance quickly slide down the spiral of decreasing effectiveness and legitimacy, leading to states viewing it not as the hard law it still formally is, but as a vague aspiration more akin to soft law. International soft law is often used as a first step toward development of international hard law (Shelton 2000b). Emerging principles of soft law can also soften existing hard law by undermining its legitimacy (Chinkin 1989). Hard law can generate secondary or delegated soft law (Chinkin 2000), or can indirectly harden soft law (Karlsson 2000). The vertical dynamics include international soft law, which can "harden" at lower levels of governance; for example, when a principle from a soft international declaration is elaborated into a legally binding treaty in one region of the world (see, for example, Wates 2005). Its character as a global norm remains soft until the international community decides to develop a global treaty.

These dynamics are important to bear in mind when applying the analytical framework for comparing norms along the soft–hard continuum against the criteria of effectiveness and legitimacy that we have developed here. The dynamics show that the choice of developing a hard or soft norm in global governance does not determine with certainty the long-term outcome.

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Our brief and preliminary exploration of effectiveness and legitimacy of three sets of norms in global climate governance does not provide the clear distinction in these two variables between softer and harder law that is sometimes assumed in the literature. Our analysis included the hard laws of the UNFCCC/KP developed through slow but universal and relatively transparent negotiations, the non-legal soft law from the CSD, which hardly anyone pays attention to, and the output of the fast, opaque, and potentially powerful G8 which, however, can simply not (yet) show much impact of its efforts to address climate change. Consistently and considerably lower evaluations of particularly process based – but also substantive and source-based – legitimacy of the G8 need not be looked at as a tradeoff to effectiveness.

The three sets of norms developed within the UN – one hard (KP), one mixed (UNFCCC), and one soft (CSD decisions) – fare relatively similarly on process-based variables of legitimacy, with the significant exception of accountability, which is much weaker for CSD output. Source-based variables of legitimacy also look weaker for CSD, but the major difference lies in effectiveness. In the UNFCCC and particularly in the KP, all mechanisms of effectiveness are put in play, albeit still with relatively humble, varying, and largely unknown strength. However, the lack of clear information on if, how, and how much or how little the UNFCCC/KP has influenced state behavior permeates the negotiations on an agreement for the period after the KP's first commitment period expires (the post-2012 agreement). With this distrust in the effectiveness of the respective impacts of the softer convention and the harder protocol, hardness and softness of the legal form of the post-2012 agreement stands out as one of the most sensitive issues in the negotiations. The proposals range from one or two new legally binding protocols to a range of decisions of the Conference of the Parties, and even softer forms of self-declared bottom-up commitments by Parties. Several Parties are also holding out on their view until they know what will be the content of the agreement, clearly wanting at all costs to avoid being bound by legal commitments.

Our application of this framework to global climate governance thus touches the very core of current politics and should support the further understanding of the dynamics of harder or softer norms designed to address issues of global concern. But our probe into the variables of effectiveness and legitimacy along the soft–hard continuum is only an illustrative example, and we have refrained from speculating on more general trends of difference along the continuum. This is partly for lack of space but also because of weaknesses in the existing literature. First, the span of what is considered soft law is very wide and not always clearly defined. Second, in some definitions of hardness the concept seems to be tied to assumptions of effectiveness, and in some definitions of softness the concept is tied to assumptions of legitimacy. Third, clues as to how norms on the hard–soft continuum "perform" on effectiveness and legitimacy are extracted from a literature which is a mixture of theoretical, normative, and empirical analysis.

Our approach seeks to address these weaknesses and differs in several aspects from other efforts in this direction. A few examples will illustrate how. The thorough analysis of Abbott and Snidal (2000) is focused on tradeoffs of different types of legalization from a cost–benefit perspective, with limited attention given to the normative assessment of legitimacy. In our framework we have built on their holistic approach to motivations for creating legalization and expanded it by highlighting the multifaceted effectiveness–legitimacy relationship in global governance. Shelton (2000a) focuses on comparing various types of soft law across different issue areas in an ambitious edited volume. The

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primary evaluative criterion is compliance, yet the analysis does not link the factors that support compliance to competing or complementary theories of what motivates or drives states' or other actors' behavior (Shelton 2000b). Furthermore, legitimacy is viewed as only instrumental to improve effectiveness (compliance) and not clearly defined. Kirton and Trebilcock's (2004) edited volume looks at where and why soft law is emerging, and why it should be used to deliver sustainable development. They address the legitimacy question but do not link effectiveness and legitimacy, nor do they structure arguments based on theories on why actors comply. Some more recent studies concentrate on the legitimacy aspects of global governance but focus only on private soft law. Black's (2008) analysis focuses on transnational, non-state regulators whose activities are not based on international law, and Bernstein and Cashore (2007) construct phases of achieving subjective legitimacy for similar governance systems. These two analytical frameworks lack the comparative dimension of the hard law of international treaties, which has been the key focus of the present article.

The strength of our framework, we argue, is that it provides a more theoretically and normatively grounded, as well as methodologically solid, approach to identifying any consistent differences among norms along the soft–hard law continuum. We also provide a way of incorporating the critique of the legalization continuum by casting the degree of legalization as an independent variable; legalization is not used as a source of law's power, but as a starting point to map the empiric reality. We base the framework for analyzing effectiveness on the dominating theories of how international norms may influence states and other actors (through changing incentives, changing preferences, and building capacity). We identify the key components of legitimacy (source, procedural, and substance-based) by relying primarily on normative theory, and we pay attention to how effectiveness and legitimacy interact. The empirical example illustrates how this holistic approach makes the evaluation of international norms more nuanced yet solid. It also shows that some variables are much more important than others for the sets of norms we looked at, but we argue that this is context dependent, warranting us to keep all of the variables in the framework.

Finally, as we have raised already in the introduction, further empirical application of the framework should pay careful attention to the possibility of significant variation in how international norms influence – and are perceived – in different countries, as "factors involving the countries themselves are at the heart of understanding compliance with binding agreements" (Brown Weiss 2000, p. 550). Country-specific factors that may influence the effectiveness and legitimacy of a particular norm in a domestic context include the *socio-historical development* of a country (presence or absence of colonialism, authoritarian regimes, and dominating ideologies); the *degree of democracy* (accountability mechanisms in parliaments; the role of the media, businesses, NGOs, and other non-state actors); *institutional factors* (the rule of law, the role of courts, the level of corruption, etc.); and *economic resources* (Gross Domestic Product [GDP] and GDP per capita, degree of aid dependence, presence of bilateral and multilateral actors). The importance of developing a better understanding of if and how the effectiveness and legitimacy of international norms differ along the soft–hard continuum through multiple country lenses should not, however, let us be trapped in the "methodological nationalism" that underlies most theorizing in international relations and international law (see Zürn 2004, quoted in Brütsch & Lehmkuhl 2007). It should, rather, help us develop theories of legalization that detach themselves from being centered on the state,

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and one particular form of state, to relate to the human community in a truly global sense.

The development of norms is one of the key tools in global governance but the types of norms that are generated have very different characteristics. In this article we suggest using their location on the soft–hard law continuum, as determined by their obligation, precision, and delegation, as the independent variable for more systematically evaluating their effectiveness and legitimacy. After applying this framework on multiple cases in different spheres of global governance there should be a more solid foundation for making claims regarding any possible consistent differences in these two criteria along the soft–hard law continuum. The empiric application will, we hope, in turn feed back to the theoretical debates between rationalists and constructivists on the main drivers of the effectiveness of norms and the role of legitimacy in different contexts.

Acknowledgments

The authors wish to thank Professor Lorraine Elliott, Professor Janne Hukkinen, and Mr. Simo Kyllönen as well as four anonymous reviewers and the editors of *Regulation & Governance* for valuable suggestions on improving the article. Earlier versions of the article were presented at a seminar in the International Institute of Social Studies, The Hague, 6 December 2006; the International Conference of Legislative Studies, Helsinki, 25–26 August 2008; and the Joint General Conference of Finnish Political Science and Sociology Associations, Rovaniemi, 27–29 March 2008. Portions of the article were presented at a series of GARNET workshops in 2007, whose organizers, Professor Nicholas Levrat, Professor Sebasthian Oberthür, and Professor Nicholas J. Schrijver as well as participants provided useful feedback. We are also grateful to Mr. Matti Tuominen for producing the graphics. The research was carried out with funding from the Academy of Finland.

Notes

1 For an historical overview of the shifting interests in the study of international law by international relations scholars, see Koh (1997).

2 Note that the well established category of international customary law emerges from state practice and may thus not always be explicitly designed nor formally codified; therefore, we exclude this from our further discussion.

3 The critique suggests that the legalization framing is not able to "provide clear help to the empirical researchers seeking to apply the concept" (Finnemore & Toope 2001, p. 756). The interactional framework (Brunnée & Toope 2000) proposed by the constructivist scholars as an alternative to legalization does not seem a ready operationalizable alternative, raising rather abstract tools for empiric research, such as focusing on "law as a set of relationships, processes, and institutions embedded in social context" and "transnational norm dynamics" (Finnemore & Toope 2001, p. 751).

4 Our identification of mechanisms of influence builds partly on Braithwaite and Drahos' (2000) analysis of the mechanisms of the globalization of governance, where they identify six key processes at work: coercion, systems of reward, modeling, reciprocal adjustment, non-reciprocal coordination, and capacity building.

5 The global community has few features of a state yet the ideas of world or global citizenship (see, for example, Dower & Williams 2002) can justify drawing parallels to the relationships within a state.

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6 See Rajamani (2006) for a detailed discussion of this theme.
7 Moravcsik (2004, p. 344) on the other hand claims that the hype on participation in global governance ignores the considerable transaction costs for participation and that even in democracies "citizens remain 'rationally ignorant' or non-participatory with regard to most issues, most of the time."
8 However, the output dimension of legitimacy is not a new idea – it has featured already in the texts of classics such as those by John Locke and Thomas Hobbes.

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